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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;

DEFENDANT

Case No.: CGC-21-594102

Underlying personal injury

Related: A173827

**DECLARATION OF
FRANCISCUS DYLAN ROSARIO
(CCP 2015.5)**

Judge: Hon. Garrett L. Wong
No hearing noticed on this paper.

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8 I, Franciscus Dylan Rosario, am the plaintiff in this action. I represent myself. I make this declara-
9 tion from my own knowledge of what I saw, filed, received, or read, except where I say a fact is on
10 information and belief or is the contents of a paper or transcript I have read. Where I quote a paper
11 or transcript, I identify it as such. I do not by this declaration ask any court to decide an appeal on
12 the merits. Statutes named in an item are my identification of the rule as it appears in the papers I
13 have read, not a finding by this Court.

14 TX means a File & Serve Express transaction number when I have one. “TX none” means the act
15 was a letter, deposition, hearing, email, claim-file paper, or an e-filing whose transaction number
16 is not yet pinned. “TX none” is not proof that a paper was not filed.

17 Items 023A, 047, 050, and 071 carry a verification hold. Those quotations are not offered as
18 certified-page testimony until the clerk’s transcript or reporter’s transcript page, or the register of
19 actions entry, is re-pinned.

20 **PART I. THE SCENE: FEBRUARY 4, 2021**

21 **001. 2021-02-04 | TX none (SFPD Report 210079556) | Subhi Abdelhalim**

22 The insured driver struck a person and then spent the next five years denying contact that his own
23 911 call admitted.

24 **What occurred.** White Ford Transit van, southbound Fifth Street turning west onto Tehama,
San Francisco, approximately 3:00 p.m.; plaintiff struck. SFPD Report No. 210079556, Officer
Fernandez #1118.

1 **002. 2021-02-04 | TX none (911 audio; later authenticated RT8) | Abdelhalim**

2 The defendant's own voice admitted the impact he later denied to police, in deposition, and at trial.

3 **What occurred.** On the 911 recording (later authenticated at trial, RT8) the driver says in sub-
4 stance "I barely hit him with anything" and "BOOM! I just hit him. HIT HIM. There was barely
5 anything."

6 **003. 2021-02-04 | TX none (911 / SFPD Report 210079556) | Abdelhalim**

7 The driver left the injured person, even briefly, before returning.

8 **What occurred.** The driver moved the van away from the injured plaintiff and returned only after
9 a passerby's 911 call reported "a hit and run ... nobody helping him." At deposition he denied
10 leaving ("I never left") and explained the move as "I pulled my vehicle on the right to the street,
11 so – I don't want to block nobody's traffic" (Depo. 17:22-23); see item 026A on why the traffic
12 explanation fails. As I identify the rule from the papers I have read: hit-and-run duty (Veh. Code
13 20001) as pleaded.

14 **004. 2021-02-04 | TX none (scene conduct; later pleaded) | Abdelhalim**

15 After returning, the driver offered the injured person pocket money on the pavement.

16 **What occurred.** After returning, the driver offered the injured plaintiff a five-dollar bill.

17 **005. 2021-02-04 | TX none (SFPD Report 210079556) | Abdelhalim**

18 Minutes after telling 911 he hit the man, the driver told the investigating officer he felt no impact,
19 and the police report adopted that account.

20 **What occurred.** Per the Traffic Collision Report, the driver told Officer Fernandez he checked his
21 mirror, completed the turn, did not feel any impact, did not see the plaintiff, and that the van had no
22 damage. The report then assigned fault to plaintiff for riding against traffic (Veh. Code 21651(b)
23 framing). As I identify the rule from the papers I have read: false or misleading statement to a
24 tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); false-report risk label
25 only (Penal Code 148.5); not a criminal charge.

1 **006. 2021-02-04 | TX none (Claim 1004-09-1054 opened) | Abdelhalim**

2 The claim file was seeded from the start with the insured's version alone.

3 **What occurred.** The driver testified he "called AAA right away to claim" and received a claim
4 number; CSAA opened Claim No. 1004-09-1054 on the insured's account.

5 **PART II. THE INSURER'S TWENTY-ONE DAYS: FEBRUARY 4 TO**
6 **FEBRUARY 25, 2021, AND THE COVER THAT FOLLOWED**

7 **007. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA claims personnel**

8 The insurer decided fault without speaking to the injured party.

9 **What occurred.** CSAA did not contact plaintiff for his account before denying liability. As I
10 identify the rule from the papers I have read: investigation / settlement standard of Ins. Code
11 790.03(h) and 10 CCR 2695.7 (standard of care).

12 **008. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA**

13 The insurer did not even lock down its own insured's story before adopting it.

14 **What occurred.** As pleaded, CSAA did not take a recorded or under-oath statement from Abdel-
15 halim; the insured himself was unsure at deposition whether he gave one. As I identify the rule
16 from the papers I have read: investigation / settlement standard of Ins. Code 790.03(h) and 10
17 CCR 2695.7 (standard of care).

18 **009. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA**

19 The single most important piece of liability evidence sat one public-records request away and
20 CSAA never asked for it.

21 **What occurred.** No request to SFPD or the Department of Emergency Management for the
22 911 recording that contained the insured's admission. Plaintiff's counsel later obtained the same
23 recording by routine request on May 12, 2021. As I identify the rule from the papers I have read:
24 investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

1 **010. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA**

2 An eyewitness on police video contradicted the insured and the insurer never looked.

3 **What occurred.** No BWC in the claim file, including Officer Thompson's footage of an eyewitness
4 saying "The man in the van hit the guy." As I identify the rule from the papers I have read:
5 investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

6 **011. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA**

7 The insurer skipped the index that would have led it to every other record.

8 **What occurred.** No dispatch (CAD) pull despite the report's linkage to dispatch incident numbers.
9 As I identify the rule from the papers I have read: investigation / settlement standard of Ins. Code
10 790.03(h) and 10 CCR 2695.7 (standard of care).

11 **012. 2021-02-04 to 2021-02-25 | TX none (Claim 1004-09-1054) | CSAA**

12 Every ordinary step of a liability investigation was skipped.

13 **What occurred.** As pleaded in the RFA set, none of these steps were taken before denial. As
14 I identify the rule from the papers I have read: investigation / settlement standard of Ins. Code
15 790.03(h) and 10 CCR 2695.7 (standard of care).

16 **013. 2021-02 (date not OCR-legible) | TX none (Metro Reporting Bureau vendor order) |**
17 **CSAA / AAA (attn. Tonyia McConnaughay)**

18 The insurer knew where the evidence was indexed and stopped at the summary that favored its
19 insured.

20 **What occurred.** CSAA ordered the police report through a vendor, showing awareness of Report
21 No. 210079556, but never pulled the 911, BWC, or CAD that the report indexed. As I identify the
22 rule from the papers I have read: investigation / settlement standard of Ins. Code 790.03(h) and 10
23 CCR 2695.7 (standard of care).

24 **014. 2021-02-25 | TX none (Claim 1004-09-1054 zero disposition) | CSAA**

25 CSAA closed the file at zero dollars before the file contained anything to evaluate.

1 **What occurred.** Claim closed twenty-one days after opening on what the Contra Costa com-
2 plaint calls a pre-determined administrative zero-disposition workflow run on an empty evidentiary
3 repository. As I identify the rule from the papers I have read: investigation / settlement standard of
4 Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care).

5 **015. 2021-02-25 | TX none (Claim 1004-09-1054 denial letter) | Sarah Rash, Claims**

6 **Representative, CSAA**

7 The letter represented a completed, careful investigation that had never gathered the 911 call, the
8 video, or the dispatch record.

9 **What occurred.** Letter to plaintiff, Claim 1004-09-1054: “We have concluded our investigation of
10 your claim. Based on our investigation, and after carefully reviewing the facts and circumstances
11 of your claim, we have concluded that our insured is not liable for your damages resulting from
12 this loss. Therefore we must decline your claim. In addition, we dispute your right to recover
13 the amount of damages you have claimed.” As I identify the rule from the papers I have read:
14 investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care);
15 deceit / concealment (Civ. Code 1709, 1710).

16 **016. 2021-02-25 | TX none (Claim 1004-09-1054 denial letter) | Rash / CSAA**

17 The letter marketed finality to a layperson while quietly hedging that it had not looked at every-
18 thing.

19 **What occurred.** The same letter invites “additional information,” while declaring the investigation
20 concluded and the insured not liable. As I identify the rule from the papers I have read: investiga-
21 tion / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care); deceit /
22 concealment (Civ. Code 1709, 1710).

23 **017. 2021-02-25 | TX none (Claim 1004-09-1054 denial letter) | CSAA**

24 What the letter omitted was the truth about how little it rested on.

25 **What occurred.** The letter did not disclose that no 911, BWC, or CAD had been requested or
26 reviewed, and listed no facts actually reviewed. As I identify the rule from the papers I have read:

1 investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care);
2 deceit / concealment (Civ. Code 1709, 1710).

3 **018. 2021-02-25 | TX none (Claim 1004-09-1054 denial letter) | CSAA**

4 The insurer paid nothing on a claim its own insured had confessed to on tape.

5 **What occurred.** Zero-dollar disposition with no offer, though the insured's own 911 admission
6 made liability reasonably clear had it been retrieved. As I identify the rule from the papers I have
7 read: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of
8 care).

9 **019. 2021-02-25 onward | TX none (Claim 1004-09-1054; continuing) | CSAA**

10 A denial engineered to make the claimant stop looking is a denial engineered to destroy his evi-
11 dence by lapse of time.

12 **What occurred.** Pleaded intent: to make plaintiff believe primary evidence had been evaluated so
13 he would not extract public records within municipal retention windows or press settlement. As I
14 identify the rule from the papers I have read: deceit / concealment (Civ. Code 1709, 1710).

15 **020. 2021-02-25 to 2025-04-16 | TX none (Claim 1004-09-1054; continuing through**
16 **2025-04-16) | CSAA**

17 An insurer that learns its denial letter was hollow has a duty to say so, and CSAA never did.

18 **What occurred.** CSAA never corrected the "concluded investigation" representation; plaintiff
19 pleads he first learned the file was empty on April 16, 2025.

20 **021. 2021-02-25 onward | TX none (Claim 1004-09-1054; continuing) | CSAA**

21 The insurer compelled four years of litigation to prove facts that were sitting in a public-records
22 queue.

23 **What occurred.** The denial pushed plaintiff into a lawsuit to authenticate the 911, BWC, and CAD
24 that CSAA's letter implied had already been considered. As I identify the rule from the papers I
25 have read: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard

of care).

PART III. THE PERSONAL-INJURY CASE BEFORE TRIAL: JULY 2021 TO DECEMBER 2024

022. 2021-07-27 | TX none (Complaint CGC-21-594102 e-filed 2021-07-27) | Milestone

Plaintiff (then represented by Dolan Law Firm) sues Abdelhalim. The five-page complaint pleads Veh. Code 22107 and 21804(a); the defense later turns this pleading into its Exhibit 500.

What occurred. Plaintiff (then represented by Dolan Law Firm) sues Abdelhalim. The five-page complaint pleads Veh. Code 22107 and 21804(a); the defense later turns this pleading into its Exhibit 500.

023. 2021-09-14 | TX none (Answer e-filed 2021-09-14; CT 1:45-48) | Michael R. Chambers, Carbone, Smith & Koyama

From the first responsive pleading, the defense was the insurer's defense, and it denied contact that the insured had already confessed on tape.

What occurred. Answer to Complaint, dated September 13, 2021, electronically filed September 14, 2021 (CT 1:45-48). Caption block: MICHAEL.CHAMBERS@CSAA.COM. CCP 431.30 general denial of every allegation, including the pleaded Veh. Code 22107 and 21804(a) duties, plus six affirmative defenses. As I identify the rule from the papers I have read: The general denial was filed after CSAA had closed the claim on an empty file (items 007-017) and without retrieving the insured's 911 admission. A denial of liability offered without the investigation 10 CCR 2695.7(d) requires is a false or reckless factual contention under CCP 128.7(b)(3) and CRPC 3.1 as later pleaded.

023A. 2021-09-14 | TX none (Answer e-filed 2021-09-14; CT 1:46 Fifth Affirmative Defense) | Chambers

Verification hold. I do not offer the exact wording of the Fifth Affirmative Defense as certified-page testimony until the certified clerk's transcript page (CT 1:46) is re-pinned. The quotation below is from the extract I have. The Fifth Affirmative Defense alleged a DUI conviction and an

1 insurance violation against me; it did not state the insured's own 911 words.

2 **What occurred.** Fifth Affirmative Defense (CT 1:46 para. 6), filed under Chambers' signature:
3 "Defendant is informed and believes, and thereon alleges, that at the time of the incident which is
4 the subject of this action plaintiff was not insured as required by the state's financial responsibility
5 laws, and/or that plaintiff was driving in violation of Vehicle Code section 23152 and/or 23153 for
6 which violation(s) plaintiff was convicted. Therefore, plaintiff's recovery, if any, must be limited to
7 economic damages pursuant to Civil Code section 3333.4." I have no arrest, charge, or conviction
8 under Veh. Code 23152 or 23153. The allegation is objectively verifiable by a docket, DOJ, or
9 DMV pull and was not supported by any such record. As I identify the rule from the papers I have
10 read: A public court paper accused the injured party of a DUI conviction he does not have, and
11 used that accusation to cut non-economic damages. CRPC 3.1, 3.3(a)(1), 8.4(c); Bus. & Prof. Code
12 6068(d), 6106, 6128(a); CCP 128.7(b)(2)-(3). Civ. Code 3333.4 does not apply to a pedestrian or
13 other person who was not driving a motor vehicle while uninsured or while convicted of DUI.

14 **023B. 2021-09-14 | TX none (Answer e-filed 2021-09-14; CT 1:45-46) | Chambers**

15 Counsel ignored the insurer's own insured (the 911 caller) and filled the Answer with stock de-
16 fenses instead of the recorded admission.

17 **What occurred.** First through Fourth and Sixth defenses: comparative negligence; failure to
18 mitigate; other-persons' fault (Civ. Code 1431.2 / 1432); statutes of limitation including CCP
19 335.1, 337, 338, and 339; and failure to state a cause of action. None of these defenses identifies a
20 fact found in a 911, BWC, or CAD pull, because CSAA had not made those pulls (items 007-014).
21 As I identify the rule from the papers I have read: Affirmative defenses offered without factual
22 investigation after a 21-day zero disposition are the pleading face of the same empty-file denial.
23 CRPC 3.1; CCP 128.7(b)(3); 10 CCR 2695.7(d) as standard of care.

24 **024. 2021-12 | TX none (Form Interrogatory responses Dec 2021; later Ex. 501B) |**

25 **Chambers / CSK**

26 Early, unpolished pro-forma responses were held for four years and used to impeach the injured
27 party on a point that did not decide fault.

1 **What occurred.** Plaintiff's December 2021 Form Interrogatory responses were preserved and
2 later admitted by PSA as Exhibit 501B and argued in closing as scooter admissions.

3 **025. 2022-08-18 | TX none (production at Rosario deposition 2022-08-18) | Chambers / CSK**

4 The defense possessed the silent-witness evidence from August 2022 and never said a word against
5 it until it was convenient to claim it had never arrived.

6 **What occurred.** Dolan Law Firm served the 911 recording and related materials; Chambers
7 attended plaintiff's deposition the same day. No written authenticity challenge followed. Jeremy
8 Jessup later swore to this production under oath (Feb 18, 2025). As I identify the rule from the
9 papers I have read: fairness / suppression (CRPC 3.4).

10 **026. 2022-09-30 | TX none (Abdelhalim deposition 2022-09-30) | Abdelhalim (with**
11 **Chambers present)**

12 The insured swore to a story his own recorded voice contradicted, and his lawyer let it stand.

13 **What occurred.** Sworn (Depo. 25:9-13): "There's no part of my van, no impact, no anything.
14 Because it's – what I telling you that – the police officer, he check my van, completely. ... There is
15 nothing impact my van – being touched." Sworn (Depo. 18:16-19): "The guy claim you hit him. I
16 said, Well, thank God – thank God I'm a good citizen. I don't – I never left." Sworn (Depo. 25:20-
17 21): he told police "there's somebody laying on the sidewalk and he's screaming and yelling. He
18 thinks he got hit." Chambers sat as counsel of record and did not correct the testimony against the
19 911 recording already in the defense file (item 025). As I identify the rule from the papers I have
20 read: A party admission already in counsel's file (Evid. Code 1220) was left standing as sworn
21 no-impact testimony. Penal Code 118 (risk label only); CRPC 3.3(a)(3) (lawyer's duty regarding
22 false evidence).

23 **026A. 2022-09-30 | TX none (Abdelhalim deposition 2022-09-30) | Abdelhalim (with**
24 **Chambers present)**

25 The insured swore that traffic forced him to move his van away from the man he had just struck,
26 on an afternoon when San Francisco's streets were carrying roughly a third less traffic than normal

1 and the same district's traffic enforcement had collapsed by four fifths.

2 **What occurred.** Sworn (Depo. 17, 21-22): traffic forced him to pull the van off the injured man;
3 in the same passage he swore the street was clear. February 2021 public data show city VMT
4 down about a third from 2019, speeds up, and Southern District traffic enforcement down about
5 four fifths. The collision record notes no visual obstruction and that both vehicles were moved
6 before officers arrived. The passerby 911 call reported no vehicle and nobody helping him.

7 **027. 2022-12-09 | TX none (CCP 998 served 2022-12-09; expired unaccepted) | Abdelhalim /**
8 **CSAA (through Chambers)**

9 With a recorded admission of impact in its own file, the insurer let a policy-limits-range offer lapse
10 and forced trial.

11 **What occurred.** Dolan served a \$500,000 statutory offer; it expired unaccepted.

12 **028. 2022-08 to 2023-05 | TX none (file custody 2022-08 to 2023-05) | Chambers / CSK**

13 For about two and a half years the defense held the silent-witness materials without a written
14 authenticity challenge.

15 **What occurred.** Continuous custody of the defense file containing the 911, BWC, and CAD
16 materials, with no written objection to authenticity or provenance. As I identify the rule from the
17 papers I have read: fairness / suppression (CRPC 3.4).

18 **028A. 2023-03-10 | TX none (Fernandez deposition 2023-03-10) | Chambers (examining**
19 **Officer Fernandez)**

20 Defense counsel sat through a police officer confirming four bodycam videos and then handed
21 forward a file from which that fact later disappeared.

22 **What occurred.** Videoconference deposition of Officer David Fernandez. Appearances: Jeremy
23 Jessup for plaintiff; Michael R. Chambers (CSK, michael.chambers@csaa.com) for Abdelhalim.
24 Fernandez testified the bodycam footage "still [is] available," that his video plus "at least three
25 more" existed, and that other officers' cameras likely captured the statements (Fernandez Depo.
26 15:4-22). Chambers thus heard, under oath, that the silent-witness video still existed, eight months

1 after Dolan had already produced 911 / BWC / CAD to him (item 025). Successor counsel later
2 told the court they had “no idea where this 911 call . . . came from” (item 036). As I identify the
3 rule from the papers I have read: Knowledge of existing BWC, combined with later “unknown
4 origin” motions, is the knowledge element for CRPC 3.3(a)(1) and Bus. & Prof. Code 6068(d)
5 as later pleaded against the successor firm; Chambers’ duty was to keep the file accurate (CRPC
6 1.16(d), 3.4(a)).

7 **029. 2023-05-04 | TX 69953800 (Substitution of Attorney) | Chambers / CSK to PSA**
8 **(Substitution Tx 69953800)**

9 A file handoff that strips out what the other side already produced is how a lie gets laundered into
10 ignorance.

11 **What occurred.** Substitution of attorney; plaintiff pleads the production history of the silent-
12 witness materials was not conveyed, manufacturing the successor firm’s later “news to me.” As I
13 identify the rule from the papers I have read: false or misleading statement to a tribunal, or failure
14 to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); deceit toward the court (Bus. & Prof. Code
15 6128(a) as pleaded); fairness / suppression (CRPC 3.4).

16 **029A. 2023-03-23 (hearing) / first continuance | TX 77801626 / 77801637 (stipulated ex parte**
17 **to continue trial) | Chambers era into PSA era**

18 The defense used plaintiff’s medical condition as the reason to delay, then used the same medical
19 file as a reason to exclude the injury at trial.

20 **What occurred.** Stipulated ex parte to continue the first trial date. The supporting memorandum
21 states this is “the first continuance of this trial date” and that the parties need more discovery,
22 including “the parties’ respective medical evaluations of Plaintiff,” because “the reasonable value
23 of his future medical care” is “unknown.” Defense later claimed it had never received medical
24 information (items 037A, 046A).

1 **029B. 2023-09-20 / 09-21 | TX none (ex parte e-filed 2023-09-20; order 2023-09-21) | Reyna /**
2 **PSA**

3 A second delay framed as a need for medical discovery, followed by MILs that the medical evi-
4 dence had not been produced.

5 **What occurred.** Notice of Ex Parte Application filed September 20, 2023; order granting Septem-
6 ber 21, 2023 (CT chronological index). Grounds: wage-loss / AI discovery, “Plaintiff has treated
7 with various physicians . . . whose depositions have yet to be taken,” and “pre-incident medical
8 records, billing records.” The memorandum admits “there has been only one previous trial contin-
9 uance.”

10 **029C. 2024-01-11 | TX none (motion e-filed 2024-01-11) | Reyna / PSA**

11 A third reset of the trial clock after two years of silent custody of the confession tape.

12 **What occurred.** Defendant’s Notice of Motion and Motion for an Order to Continue Trial Date
13 Pursuant to Joint Stipulation, with Declaration of Alberto Reyna, filed January 11, 2024 (CT
14 chronological index). Continues the delay into 2024 while the 911 / BWC file remained in de-
15 fense custody without an authenticity challenge (item 028).

16 **030. 2024-02-01 | TX none (Compex CA1147102-021 to SFPD) | Alberto Reyna, PSA**

17 The lawyer who subpoenaed the 911 call by name later told the court he was not sure what record-
18 ing plaintiff meant.

19 **What occurred.** Reyna signed Compex Deposition Subpoena Order CA1147102-021 to SFPD de-
20 manding the “9-1-1 CALL” and “ANY AND ALL VIDEO RECORDINGS FROM BODY-WORN
21 CAMERAS.” As I identify the rule from the papers I have read: false or misleading statement to a
22 tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper certified without
23 the required factual or legal support (CCP 128.7(b)); deceit toward the court (Bus. & Prof. Code
24 6128(a) as pleaded).

1 **031. 2024-02-26 (approx.) | TX none (document demand approx. 2024-02-26) | Reyna / PSA**

2 The defense demanded the records in February 2024 and disclaimed knowledge of them in January
3 2025.

4 **What occurred.** Request for all records “stored in any format” regarding the collision, encom-
5 passing 911, CAD, and BWC.

6 **032. 2024-08-28 | TX none (pro per settlement letter 2024-08-28) | Context**

7 A second documented opportunity to resolve the case on the strength of the insured’s own admis-
8 sion was declined.

9 **What occurred.** Plaintiff, now pro per, sends PSA (Yareli Ramos) a settlement demand invoking
10 the expired 998 and insurer exposure. No acceptance followed.

11 **033. 2024-09-09 (approx.) | TX none (CAD identifiers transmitted approx. 2024-09-09) |**
12 **Reyna (recipient)**

13 Four months before the “unknown origin” motion, the defense held the dispatch identifiers that
14 established origin.

15 **What occurred.** Plaintiff transmits CAD identifiers linking the 911, dispatch, and police materials.
16 As I identify the rule from the papers I have read: paper certified without the required factual or
17 legal support (CCP 128.7(b)).

18 **034. 2024-09-05 / 09-17 | TX none (ex parte e-filed 2024-09-05; order 2024-09-17) | Reyna /**
19 **PSA**

20 Delay served the defense while the plaintiff’s evidence sat under a cloud the defense had created.

21 **What occurred.** Ex parte application filed September 5, 2024; Global Statement of Facts later re-
22 cites: “On September 17, 2024, pursuant to an ex parte application and the parties’ joint stipulation,
23 this Court granted an Order continuing the trial date to January 27, 2025, with all trial deadlines,
24 discovery related deadlines, including both expert and percipient witness discovery deadlines, to
25 be based upon the new trial date.” Four months later the same firm filed MILs 6 and 17 claiming

1 the 911 call and recorded materials were unknown and not produced (items 035-036). As I identify
2 the rule from the papers I have read: Delay after constructive and actual possession of the silent-
3 witness file, used to tee up a false non-production motion, is the knowledge-plus-use element for
4 CRPC 3.3(a)(1) and CCP 128.7(b) as later pleaded.

5 **PART IV. THE 2025 PRETRIAL MOTIONS: THE “NEWS TO ME” SE-** 6 **QUENCE**

7 **035. 2025-01-17 | TX 80936030 (MIL 6) | Priya D. Navaratnasingham, PSA**

8 A sworn-signature motion told the court the evidence had not been produced when the defense file
9 had held it since 2022.

10 **What occurred.** MIL 6 (FSX Tx 80936030; CT 1:149-151) represented that the recorded mate-
11 rials “were not produced in discovery.” As I identify the rule from the papers I have read: false
12 or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code
13 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)); fairness /
14 suppression (CRPC 3.4).

15 **036. 2025-01-17 | TX 80936053 (MIL 17) | Navaratnasingham / PSA**

16 The firm whose associate had subpoenaed the 911 call by name eleven months earlier told the court
17 no proper subpoena existed.

18 **What occurred.** MIL 17 (FSX Tx 80936053; CT 1:238) stated the materials were “produced at
19 the eleventh hour”; “Defendant has no idea where this 911 call log or audio recording came from”;
20 “It does not appear that either the log or the recording were obtained via proper subpoena process.”
21 As I identify the rule from the papers I have read: false or misleading statement to a tribunal, or
22 failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper certified without the required
23 factual or legal support (CCP 128.7(b)); deceit toward the court (Bus. & Prof. Code 6128(a) as
24 pleaded).

1 **037. 2025-01-17 | TX 80936025 (MIL 4) | Navaratnasingham**

2 The defense moved to keep the jury from hearing the injury while separately moving to keep it
3 from hearing the impact.

4 **What occurred.** MIL 4 sought to bar plaintiff's brain-injury evidence for want of expert designa-
5 tion. As I identify the rule from the papers I have read: fairness / suppression (CRPC 3.4).

6 **038. 2025-01-17 | TX 80936017 (Global Statement); MIL 1 TX 80936019 |**

7 **Navaratnasingham**

8 Nineteen motions in limine built a wall around the one recording that decided the case.

9 **What occurred.** MIL 1 later used for categorical exclusion posture on the 911 transcript at the
10 January 27 hearing. As I identify the rule from the papers I have read: fairness / suppression
11 (CRPC 3.4).

12 **037A. 2025-01-17 | TX 80936019 / 80936021 / 80936023 / 80936045 / 80936048 / 80936055**

13 **(MILs 1, 2, 3, 13, 14, 18) | Navaratnasingham / PSA**

14 The defense blocked the jury from the injury while claiming it had never seen the medical file its
15 own investigator never obtained.

16 **What occurred.** The same January 17 package that denied receipt of police recordings also denied
17 receipt or usability of medical proof: - MIL 1: exclude all expert or non-retained expert testimony
18 because "Plaintiff has not served a designation" (expert exchange date December 9, 2024, after the
19 September 17 continuance). - MIL 2: preclude any testimony or argument that plaintiff's injuries
20 were caused by defendant; "Plaintiff has already failed to meet his burden in proving causation."
21 - MIL 3: preclude future medical specials because "Plaintiff has failed to provide any admissible
22 evidence that he will even require future medical treatment." - MIL 13: exclude special damages
23 "not identified in discovery" and "documents and other evidence that he has failed to produce to
24 Defendant." - MIL 14: preclude future medical treatment. - MIL 18: preclude past and future earn-
25 ings; "Plaintiff has not produced any admissible evidence" and "has not designated any medical
26 or vocational rehabilitation expert." CSAA's own February 2021 file never pulled medical records

(item 012). The 2023-2024 continuance papers had already recited treating physicians, billing records, and medical evaluations (items 029A-029B). The “never received medical information” posture is therefore the same empty-investigation fact, restated as a trial exclusion. As I identify the rule from the papers I have read: Using a “not produced” / “no medical evidence” predicate to strip causation and damages after the insurer skipped the medical pull, and after continuance papers admitted treaters existed, is CRPC 3.3(a)(1) and 3.4(a) as pleaded; CCP 128.7(b)(3).

039. 2025-01-27 | TX none (hearing 2025-01-27; minutes on CT index) | Navaratnasingham

The oral story matched the written motions and both were false.

What occurred. Plaintiff’s materials attribute to this hearing the first oral version of the “did not receive the 911 call until the MSC” account. As I identify the rule from the papers I have read: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

040. 2025-02-18 | TX none (hearing 2025-02-18; certified transcript) | Navaratnasingham (Reyna present)

Confronted with sworn proof of production, counsel answered with a personal-knowledge dodge that the tribunal took as fact.

What occurred. After Jeremy Jessup of Dolan Law Firm testified under oath that the 911 audio, about five BWC videos, and CAD were “produced to defense counsel” and served at plaintiff’s deposition (Hr’g Tr. 139-140), Navaratnasingham told the court: “So this is news to me. We didn’t realize that prior to handling counsel may have received it, and I can’t confirm whether that was produced. . . . our office did not receive the 911 call until the day of the MSC – the day before the MSC and that was an attachment link.” Court: “I see. Okay.” (p. 141.) As I identify the rule from the papers I have read: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); deceit toward the court (Bus. & Prof. Code 6128(a) as pleaded); extrinsic fraud / fraud on the court as pleaded (Kulchar; Modnick).

1 **041. 2025-02-18 | TX none (hearing 2025-02-18; certified transcript) | Navaratnasingham**

2 Having heard the sworn contrary testimony, counsel repeated the false premise rather than correct
3 it.

4 **What occurred.** Later in the same hearing counsel reinforced the non-production account (Hr’g
5 Tr. 163-165, 176-177). As I identify the rule from the papers I have read: false or misleading
6 statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

7 **042. 2025-02-18 | TX none (hearing 2025-02-18; certified transcript) | Reyna**

8 The one lawyer in the room who had personally subpoenaed the 911 call said nothing while his
9 colleague disclaimed knowledge of it.

10 **What occurred.** Reyna, signer of Complex CA1147102-021, was present for the Jessup testimony
11 and the “news to me” statement and did not correct MIL 17’s “no proper subpoena” representation.
12 As I identify the rule from the papers I have read: false or misleading statement to a tribunal, or
13 failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

14 **043. 2025-02-18 | TX none (hearing 2025-02-18 ruling) | Defense representations / court**
15 **reliance**

16 The court’s refusal of time rested entirely on counsel’s account of what the defense did and did not
17 have.

18 **What occurred.** Court denied plaintiff’s continuance and related CCP 473 relief, reasoning plain-
19 tiff had the materials “since August of 2024” and the defense was “not blocking” (pp. 178, 181-
20 182). As I identify the rule from the papers I have read: false or misleading statement to a tribunal,
21 or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); extrinsic fraud / fraud on the
22 court as pleaded (Kulchar; Modnick).

1 **044. 2025-02-18 | TX none (hearing 2025-02-18; MIL 17 granted without prejudice) |**

2 **Defense MIL predicates**

3 The evidence was excluded because the defense said it did not know where it came from, and the
4 defense knew exactly where it came from.

5 **What occurred.** The exclusion order rested on the “unknown origin” and non-production repre-
6 sentations. As I identify the rule from the papers I have read: extrinsic fraud / fraud on the court
7 as pleaded (Kulchar; Modnick).

8 **045. 2025-02-28 | TX none (hearing 2025-02-28; certified transcript) | Court, on the**
9 **defense’s word**

10 The defense obtained the benefit of an officer-of-the-court presumption it had already forfeited.

11 **What occurred.** Judge Wong: “I’m not going to question a lawyer’s remarks regarding what they
12 have and don’t have” (Hr’g Tr. 291:26-292:7), and shifted to plaintiff the burden of proving what
13 the defense possessed (p. 293:1-3).

14 **037B. 2025-03-11 | TX 81230084 (MIL 20) | Navaratnasingham**

15 Counsel treated a production dispute about one later treater as proof the injured party had no
16 medical case.

17 **What occurred.** MIL 20 (FSX 81230084) represents: “On March 3, 2025, Plaintiff failed to pro-
18 duce any records of treatment by Dr. Rene Gonzalez”; “As of the filing of this motion, Plaintiff
19 has failed to produce any records of treatment by Dr. Rene Gonzalez per the Court’s directive.”
20 The same motion attaches plaintiff’s March email serving other treating records (ER notes and
21 additional treaters). The defense used a single-treater gap to move exclusion of “any and all testi-
22 mony, records and/or opinions.” As I identify the rule from the papers I have read: A categorical
23 exclusion motion built on “no records” while the motion itself attaches other medical records is a
24 misleading statement to the tribunal (CRPC 3.3(a)(1)) if offered as a claim that the defense had no
25 medical file at all.

1 **046. 2025-03-12 | TX none (Amended Exhibit List doc. 09506069) | PSA**

2 The defense planned to put the plaintiff's pleaded statutes in front of the jury as evidence while
3 later opposing any instruction on them.

4 **What occurred.** Defendant's Amended Exhibit List (doc. 09506069) lists the complaint (with its
5 pleaded Veh. Code 22107 and 21804(a) sections) as Exhibit 500, plus 501 (responses), 503 (traffic
6 report), 504A-E (BWC), 505 (Fernandez deposition). As I identify the rule from the papers I have
7 read: refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

8 **PART V. THE TRIAL: APRIL 2025**

9 **046A. 2025-04-07 / 04-10 | TX none (orders 2025-04-07 and 2025-04-10 on CT index) |**

10 **Court, on the defense MILs**

11 The defense converted its own empty 2021 medical file into a court order that the injured party
12 could not prove he was hurt.

13 **What occurred.** Orders granting MIL 8 (liability insurance) and MIL 19 (April 7); orders granting
14 MIL 2 (causation testimony), MIL 3 (future medical specials), MIL 14 (future medical treatment),
15 and MIL 18 (earnings) on April 10, 2025 (CT chronological index). The medical wall of item
16 037A became the law of the trial. Combined with the 911 / BWC provenance lie (items 035-044),
17 the jury was kept from the impact evidence and from the injury evidence. As I identify the rule
18 from the papers I have read: Exclusion orders procured on the "no medical" and "not produced"
19 predicates are the prejudice half of the extrinsic-fraud and due-process chain (Kulchar; Modnick;
20 Soule).

21 **047. 2025-04-16 (Day 7, RT7) | TX none (RT7 2025-04-16) | Reyna**

22 **Verification hold.** I do not offer the RT7 page and line for the supplemental-report subpoena sen-
23 tence as certified-page testimony until the certified reporter's transcript is re-pinned. Continuous-
24 line cites vary in the papers I have read. The subpoena's own author told the court the subpoena
25 had not produced the document that contradicted his client.

26 **What occurred.** Reyna represented that the supplemental report was "not anything that we re-

ceived as part of the subpoena” (RT7 p. 156:5-16 per TAC; continuous-line cites vary); the court excluded it. As I identify the rule from the papers I have read: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

048. 2025-04-16 | TX none (RT7 2025-04-16) | Navaratnasingham

Counsel conceded the subpoena existed only when the concession helped exclude the next document.

What occurred. Acknowledged the defense “did subpoena” police records and “did not receive the supplemental narrative as part of that subpoena response” (RT7 157:7-16), contradicting MIL 17’s “no proper subpoena” claim without correcting MIL 17. As I identify the rule from the papers I have read: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

049. 2025-04-16 | TX none (RT7 2025-04-16) | Reyna

Feigned ignorance of a recording named in his own subpoena delayed the jury’s exposure to the confession.

What occurred. Claimed he was “not sure what recording” plaintiff meant regarding the 911 call (RT7 approx. ll. 2990-2994); the court deferred admission of the 911 pending plaintiff’s testimony.

050. 2025-04-16 | TX none (RT7 2025-04-16) | Navaratnasingham

Verification hold. I do not offer a single RT7 page number for the “provided by Dolan” sentence as certified-page testimony. Working notes I have differ between p. 213 and p. 214. The admission that the defense had the videos all along came only after the exclusion rulings that the denial had procured.

What occurred. Counsel admitted the videos “were provided by Dolan” and described curating five videos down to “about 8 or 9 minutes” (RT7 p. 213:13-15 or 214:13-15 depending on the memo). As I identify the rule from the papers I have read: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

1 **051. 2025-04-16 onward | TX none (RT7 onward; no correction filing) | Navaratnasingham,**
2 **Reyna, PSA**

3 A lawyer who learns the court is relying on his false statement must fix it, and these lawyers rode
4 the false statement to verdict.

5 **What occurred.** After the “provided by Dolan” admission the defense did not withdraw or amend
6 MIL 6 or 17, did not notify the court that “news to me” was false, and left the February 18 and
7 28 rulings undisturbed through verdict. As I identify the rule from the papers I have read: false
8 or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code
9 6068(d)).

10 **052. 2025-04-16 | TX none (RT7 2025-04-16) | Defense (cross of Fernandez)**

11 The defense put a non-witness’s fault conclusion before the jury while keeping the eyewitness
12 video out.

13 **What occurred.** Defense elicited Fernandez’s opinion that plaintiff “caused the collision” under
14 Veh. Code 21651(b) over speculation and foundation objections (“opened the door”), RT7 153-
15 154; Fernandez admitted he did not witness the collision (66:17-19) and relied on other officers
16 (67:20-26; 70:10-18).

17 **053. 2025-04-16 | TX none (RT7 2025-04-16) | Defense**

18 The defense proved its theory of the plaintiff’s conduct through a witness who was not there.

19 **What occurred.** Elicited a claim of plaintiff’s northbound wrong-way travel and speed through the
20 officer (RT7 151:5-18); plaintiff objected on hearsay and lack of firsthand knowledge (151:19-22);
21 counsel rephrased.

22 **054. 2025-04-17 (Day 8, RT8) | TX none (RT8 2025-04-17) | Abdelhalim**

23 The defendant confirmed the confession was his and asked the jury to believe he did not mean it.

24 **What occurred.** “Yes. That is my voice.” The recording was played (RT8 107:15-108:28; 110:15-
25 111:12). He then claimed fear, confusion, and repetition of plaintiff’s accusations, and maintained
26 he felt no impact (RT8 117:7-120:14; 128:4-129:12; 132:19-133:25).

1 **055. 2025-04-21 | TX none (Exhibit 500 admitted 2025-04-21; doc. 09573521) | PSA**

2 The defense placed the plaintiff's pleaded Vehicle Code sections before the jury as a document and
3 then denied the jury the law those sections state.

4 **What occurred.** Defendant's Exhibit Record shows Exhibit 500 (five-page complaint, CT 1:40-
5 44, pleading Veh. Code 22107 and 21804(a)) admitted April 21, 2025, along with 501A, 501B,
6 503A-D (curated BWC clips), and 509. Plaintiff states he did not learn of the formal admission
7 until August 2025. As I identify the rule from the papers I have read: refusal or blockage of the
8 law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

9 **056. 2025-04-21 | TX none (Exhibit 509 admitted 2025-04-21) | PSA**

10 The defense used a communication between the plaintiff and his own former lawyer to impeach
11 him.

12 **What occurred.** An email from plaintiff's former counsel to plaintiff was admitted and argued as
13 a credibility attack (RT10 53:20-27).

14 **057. 2025-04-21 | TX none (Exhibits 503A-D; RT10) | PSA**

15 Having claimed for months not to know where the video came from, the defense then edited it.

16 **What occurred.** Only defense-selected BWC clips (503A-D, roughly 8-9 minutes from five
17 videos) went to the jury; full source recordings were not admitted. As I identify the rule from
18 the papers I have read: fairness / suppression (CRPC 3.4).

19 **058. 2025-04-22 (RT10) | TX none (RT10 2025-04-22 closing) | Defense counsel**

20 The defense argued the contents of the plaintiff's pleading as proof of fact while treating the statutes
21 in that same pleading as forbidden.

22 **What occurred.** Closing invoked the complaint, the December 2021 discovery responses, and
23 footage as proof of scooter riding (RT10 49:3-15); plaintiff's hearsay objection overruled. As I
24 identify the rule from the papers I have read: refusal or blockage of the law the jury asked for
25 (CCP 614; Evid. Code 310, 451; CCP 647).

1 **059. 2025-04-22 | TX none (RT10 2025-04-22 closing) | Defense counsel**

2 Counsel told the jury the turn was legal while ensuring the jury was never told what the turning
3 statute required.

4 **What occurred.** Core theory at RT10 54:16-24: “My client checked his mirrors, it was clear.
5 He made a legal right turn,” and plaintiff failed to yield. Also argued no loss of consciousness,
6 intoxicated observer, unproven scuff, wrong-way travel, and the Dolan email (RT10 50-54). As
7 I identify the rule from the papers I have read: refusal or blockage of the law the jury asked for
8 (CCP 614; Evid. Code 310, 451; CCP 647).

9 **060. 2025-04-22 | TX none (RT10 charge 2025-04-22) | Defense (charge)**

10 The only Vehicle Code section the jury received as law was the one aimed at the injured party.

11 **What occurred.** Instructions included Veh. Code 21651(b) negligence per se against plaintiff and
12 general negligence, with no turning-duty instruction (CACI 705 / Veh. Code 22107) for plaintiff
13 (RT10 16-17).

14 **061. 2025-04-23 (RT11) | TX none (Jury Request No. 1; doc. 09577565) | Jury / defense**
15 **pathway**

16 The defense’s exhibit created the question, and the defense then benefited from the refusal to
17 answer it.

18 **What occurred.** Jury (doc. 09577565, 10:09 a.m.) asked whether it may consider those sections
19 and whether it would be instructed; the admitted Exhibit 500 complaint is the likely source (re-
20 spondent later conceded this, item 088). As I identify the rule from the papers I have read: refusal
21 or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

22 **062. 2025-04-23 | TX none (RT11 2025-04-23) | Court (defense as beneficiary)**

23 The defense stood by while the court told jurors that enacted law was not evidence, then accepted
24 Vehicle Code definitions it had requested.

25 **What occurred.** Court’s response (10:37 a.m.): the jury “may not consider” those sections “nor
26 will the court instruct”; later, “neither Vehicle Codes Section 22107 nor 21804 subdivision A

1 were part of the evidence. They simply are not permitted to consider that as evidence in the case,
2 period” (RT11 7:4-9). Nine lines later the court supplied Vehicle Code definitions of “vehicle” and
3 “highway” (RT11 7:16-26). As I identify the rule from the papers I have read: refusal or blockage
4 of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

5 **063. 2025-04-23 | TX none (RT11 2025-04-23) | Defense counsel**

6 The defense asked the jury be given Vehicle Code text on the same morning it accepted a ruling
7 that Vehicle Code text was “not part of the evidence.”

8 **What occurred.** By PSA’s own later account, “Defendant’s counsel requested that the definition
9 for ‘highway’ also be included” and Veh. Code 670 and 360 were “submitted to the jury.” As I
10 identify the rule from the papers I have read: refusal or blockage of the law the jury asked for (CCP
11 614; Evid. Code 310, 451; CCP 647).

12 **064. 2025-04-23 | TX none (verdict 2025-04-23; polled RT11 15-16) | Jury**

13 The thinnest possible verdict was obtained on a record from which the defense had removed the
14 confession’s provenance, the eyewitness footage, the medical proof, and the turning statute.

15 **What occurred.** Verdict for defendant on the minimum civil majority; polled (RT11 15-16). This
16 is the verdict the later papers treat as a merits adjudication. It issued after the false non-production
17 MILs (035-044), the medical-exclusion orders (037A, 046A), the one-sided Vehicle Code charge
18 (060), and the refusal to instruct on the statutes the jury named (062). As I identify the rule from
19 the papers I have read: A verdict obtained after the jury was forbidden to consider enacted turning-
20 duty law (CCP 614; Evid. Code 310, 451; CCP 647) and after exclusion orders procured on false
21 provenance statements is the due-process / Soule / Kulchar injury as pleaded. It is not a clean
22 merits finding.

PART VI. JUDGMENT, COSTS, AND POST-TRIAL MOTIONS: APRIL TO AUGUST 2025

065. 2025-04-25 / 2025-04-29 | TX none (Judgment CT 6:1689; Notice of Entry 2025-04-29) | Court; Reyna

The lawyer who had disclaimed knowledge of his own subpoena signed the paper that made the verdict final.

What occurred. Judgment on verdict entered (CT 6:1689); Notice of Entry filed and served April 29, 2025 (CT 6:1691), signed by Alberto Reyna as I have read it. As I identify the rule from the papers I have read: extrinsic fraud / fraud on the court as pleaded (Kulchar; Modnick).

066. 2025-04-30 | TX 76186261 (Memorandum of Costs) | Abdelhalim / PSA

Having won by keeping the evidence out, the defense billed the injured party seventy-six thousand dollars for the privilege.

What occurred. Cost memorandum filed (Tx 76186261) against a fee-waiver plaintiff.

067. 2025-05-12 | TX none (Opposition to new trial 2025-05-12) | Robert K. Phillips, Navaratnasingham, Reyna, PSA

The waiver theory that later carried the appeal was first planted by trial counsel in a post-trial brief, without citing CCP 647.

What occurred. The opposition argued CACI 705 “would not have provided the jury with any additional pertinent instruction,” that CACI 400/401 were “essentially the equivalents” of the vehicle instructions, and that “Plaintiff raised no objection to the jury instructions that were provided to the jury during the pre-trial hearing.” As I identify the rule from the papers I have read: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)).

068. 2025-05-12 | TX none (Opposition to new trial 2025-05-12) | PSA

The defense called the pro per plaintiff a liar for describing a colloquy the defense itself admits was unreported.

1 **What occurred.** The opposition accused plaintiff of “an outright misstatement of the facts” for
2 saying the vehicle/highway definitions were delivered off record, while conceding defense counsel
3 requested the “highway” definition and that “both sides agreed.” As I identify the rule from the
4 papers I have read: fairness / suppression (CRPC 3.4).

5 **069. 2025-05-12 | TX none (Opposition to new trial 2025-05-12) | PSA**

6 The defense told the post-trial court the confession had been fairly tried without mentioning how
7 it had kept the confession’s origin in doubt.

8 **What occurred.** Argued the jury heard the 911 call and “gave the weight that it did,” treating
9 the admission as fully aired while never disclosing that the same firm’s MILs had delayed and
10 narrowed it on a false provenance story. As I identify the rule from the papers I have read: false
11 or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code
12 6068(d)).

13 **070. 2025-05 to 2025-07 | TX none (post-trial oppositions; order 2025-07-15 CT p. 1833) |**
14 **PSA**

15 The defense defended a judgment it knew, since April 16, rested on representations its own lawyer
16 had contradicted in open court.

17 **What occurred.** Defense opposed every post-trial motion; on July 15, 2025 Judge Wong denied
18 all eight in one order. As I identify the rule from the papers I have read: false or misleading
19 statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper
20 certified without the required factual or legal support (CCP 128.7(b)).

21 **071. 2025-08-08 (verify) | TX none (cost figure on docket; confirm ROA) | Defense as**
22 **prevailing party**

23 **Verification hold.** I do not offer the August 8, 2025 cost-entry date or the dollar figure as a finding
24 until the register of actions entry is confirmed. A cost figure from a fraud-procured judgment
25 became a recurring leverage number in later cases.

26 **What occurred.** Papers I have read state the \$76,308.90 memorandum was “entered” August 8,

2025 and that plaintiff “still owes” it; Porter Scott later cited approximately \$75,000 owed in its 2026 footnotes without a cost order citation (item 108).

PART VII. THE APPEAL, A173827: AUGUST 2025 TO SEPTEMBER 2026

072. 2025-08-06 | TX none (Substitution of Attorney A173827 2025-08-06) | Rebekah A. Morrissey (SBN 287379), Koyama & Costello, CSAA staff counsel

The insurer’s own staff counsel took over the appeal while the insurer told two trial courts it had no litigation role in the underlying case.

What occurred. Substitution of Attorney; counsel block uses REBEKAH.MORRISSEY@CSAA.COM; Tyler J. O’Connell (Porter Scott) also listed on AOB service.

073. 2026-08-03 | TX none (Respondent’s Brief A173827 filed 2026-08-03) | Morrissey
Filed for Abdelhalim individually and dba Sonoma Liquor.

What occurred. Filed for Abdelhalim individually and dba Sonoma Liquor.

073A. 2026-08-03 | TX none (Respondent’s Brief A173827 filed 2026-08-03) | Morrissey / CSAA

CSAA staff counsel told a reviewing court that de novo review of RT11 shows a waiver. It does not. The transcript shows a judicial refusal, not a party’s surrender of the instruction.

What occurred. RB 6:8-10: “The propriety of jury instructions is a question of law which is reviewed de novo. (Martinez v. Rite Aid Corp. (2021) 63 Cal.App.5th 958, 969.)” A de novo reading of that same record does not state a waiver of the court’s duty to instruct. What it states is: the jury named Veh. Code 22107 and 21804(a) (Request No. 1); the court refused to instruct and said those sections “were not part of the evidence ... period” (RT11 7:4-9); plaintiff said “Of course we have an objection” (RT11 p. 10); CCP 647 deems a refused instruction excepted to; Lund v. San Joaquin Valley Railroad (2003) 31 Cal.4th 1, 7 confirms no further exception is required. No transcribed party stipulation waives the instruction. Items 074-092 are the sentence-by-sentence overlay that converted that de novo record into a waiver colloquy. As I identify the rule

1 from the papers I have read: CRPC 3.3(a)(1) and CRC 8.204(a)(1)(C): a factual waiver assertion
2 without a record pin; CRPC 3.3(a)(2) for omitting CCP 647 and Lund while arguing forfeiture.

3 **074. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

4 A brief about a jury's mid-deliberation question on the law never mentioned the statute that governs
5 jury questions on the law.

6 **What occurred.** The brief never cites Code of Civil Procedure section 614, the statute governing a
7 jury's request for information on a point of law after retiring. As I identify the rule from the papers
8 I have read: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d));
9 refusal or blockage of the law the jury asked for (CCP 614; Evid. Code 310, 451; CCP 647).

10 **075. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

11 Respondent built an entire forfeiture argument while hiding the statute that says no exception was
12 required.

13 **What occurred.** The brief argues waiver from silence without citing CCP 647 (refusal of an
14 instruction is deemed excepted to) or Lund (2003) 31 Cal.4th 1, 7. As I identify the rule from
15 the papers I have read: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code
16 6068(d)).

17 **076. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

18 The brief argued about law-as-evidence without the two Evidence Code sections that answer the
19 question.

20 **What occurred.** The brief disputes whether statutes are "evidence" without citing the sections that
21 make questions of law the court's province and mandatory judicial notice of California statutes. As
22 I identify the rule from the papers I have read: omission of controlling authority (CRPC 3.3(a)(2);
23 Bus. & Prof. Code 6068(d)).

24 **077. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

25 An insurer that controlled the defense and would pay any judgment was disclosed as no one.

26 **What occurred.** The certificate lists no interested party while counsel litigates from CSAA's email

1 domain and CSAA funded the defense.

2 **078. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

3 The brief erased the unreported sidebar, the rule 8.137 request, and the sequence of RT11 to man-
4 ufacture silence.

5 **What occurred.** RB 8:8-15: "There is no evidence in the record that at the time question #1 was
6 raised and responded to Appellant made any objection . . . the only evidence in the record is found
7 in RT 11, which documents the discussion regarding jury question #3." As I identify the rule from
8 the papers I have read: false or misleading statement to a tribunal, or failure to correct one (CRPC
9 3.3; Bus. & Prof. Code 6068(d)); record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

10 **079. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

11 A one-word answer about jurors accessing statutes on their own was rebranded as agreement that
12 the court need not state the law.

13 **What occurred.** RB 8:17-26 quotes the court asking whether plaintiff objected "to the instruction
14 given in response to Jury request number one" and plaintiff's "No. I have objection to the fact they
15 were accessing or requesting all of them anyways," then treats this as no objection to the refusal
16 to instruct. As I identify the rule from the papers I have read: record-unsupported appellate fact
17 (CRC 8.204(a)(1)(C)).

18 **080. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

19 The brief cut the quotation at the comma that changed its meaning.

20 **What occurred.** RB 8:27-30 quotes "I do agree with the first one, the response to number one: You
21 may not consider it because it is not part of the instructions," omitting the next sentence contrasting
22 Request No. 2, and presents it as agreement with the refusal to instruct on Veh. Code 22107 (RB
23 10:18-19). As I identify the rule from the papers I have read: false or misleading statement to a
24 tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); record-unsupported
25 appellate fact (CRC 8.204(a)(1)(C)).

1 **081. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

2 The brief moved the plaintiff's objection to a different question so it could say none was made to
3 the first.

4 **What occurred.** RB 8:31-9:4 asserts plaintiff's "Of course we have an objection" (RT11 p. 10)
5 concerned only jury question 3. As I identify the rule from the papers I have read: record-
6 unsupported appellate fact (CRC 8.204(a)(1)(C)).

7 **082. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

8 A judge's after-the-fact characterization was offered as if it were the plaintiff's stipulation.

9 **What occurred.** RB 9:5-12: "The court on page 10 noted Appellant made no objection when the
10 responses to Jury questions #1 or #2 were being determined." As I identify the rule from the papers
11 I have read: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

12 **083. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

13 Respondent argued a pro per's wrong CACI number forfeited the law the jury itself asked for by
14 statute number.

15 **What occurred.** RB 10:13-17: because plaintiff's proposed list had CACI 707 rather than 705,
16 the turning-duty claim is waived (Agarwal, Finn, Metcalf, Gregory). As I identify the rule from
17 the papers I have read: refusal or blockage of the law the jury asked for (CCP 614; Evid. Code
18 310, 451; CCP 647).

19 **084. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey**

20 An objection to jurors researching law on their own was recast as opposition to the judge stating
21 the law.

22 **What occurred.** RB 10:15-21: "it is undisputable that Appellant vehemently opposed giving any
23 instruction on Vehicle Code section 22107 ... Appellant moved for a mistrial when the jury even
24 asked to be instructed ... He admitted in open court that he agreed with the Court's refusal to
25 instruct." As I identify the rule from the papers I have read: false or misleading statement to a
26 tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); record-unsupported

appellate fact (CRC 8.204(a)(1)(C)).

085. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

The brief denied on page 10 what it had conceded on page 6.

What occurred. RB 10:29-30: "There is no evidence in the record that Appellant requested CACI 705, 707, or 710 be given or that such a request was denied." RB 6:21-22 admits "[t]he list requested CACI 707"; AugCT Exh. A (doc. 09580112) lists 707, 710, and the 700-710 range. As I identify the rule from the papers I have read: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

086. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Respondent invented a charge-conference agreement out of thin air and asked the court to presume it.

What occurred. RB 10:30-31, with no record citation. As I identify the rule from the papers I have read: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

087. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

The brief told the appellate court the trial judge never said what the transcript shows him saying.

What occurred. TOC heading says the response "Was Based On The Law Not Being in Evidence" (RB 3:20); body heading says "WAS NOT" (RB 11:28-29); RB 11:31-12:4 calls plaintiff's premise "simply inaccurate" and "wholly unsupported by the record." RT11 7:4-9 records the court saying the sections "were not part of the evidence ... period." As I identify the rule from the papers I have read: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

088. 2026-08-03 | TX none (Respondent's Brief A173827 filed 2026-08-03) | Morrissey

Respondent admitted its own exhibit prompted the jury's question and still defended refusing to answer it.

What occurred. RB 13:29-32 admits the admitted complaint with Veh. Code 22107 "is likely the

source of the jury’s question,” while maintaining the statutes were properly withheld.

089. 2026-08-03 | TX none (Respondent’s Brief A173827 filed 2026-08-03) | Morrissey

Respondent speculated the jury ignored the confession, without a citation, to defeat prejudice.

What occurred. RB 13:3-5, no record cite; omits the 9-3 poll and the jury’s own question as prejudice signals. As I identify the rule from the papers I have read: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

090. 2026-08-03 | TX none (Respondent’s Brief A173827 filed 2026-08-03) | Morrissey

The brief told the court a categorical ban on named statutes was cured by a generic care instruction.

What occurred. RB 12:19-31: general reasonable care makes the turning instruction surplus.

091. 2026-08-03 | TX none (Respondent’s Brief A173827 filed 2026-08-03) | Morrissey

A jury asking to be instructed on two named statutes was described as not asking about the law.

What occurred. RB 13:17-28 / 14:8-11: the question was “not about the substance or based on confusion of the law itself but on whether they should consider the Vehicle Code sections alleged in the Complaint.”

092. 2026-08-03 | TX none (Respondent’s Brief A173827 filed 2026-08-03) | Morrissey

The brief closed on a factual claim its own page 6 and the augmented record refute.

What occurred. RB 14:16-20. As I identify the rule from the papers I have read: false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

093. 2026-08-03 | TX none (Respondent’s Brief A173827 filed 2026-08-03) | Morrissey

Citation hygiene failed in the one case the brief chose to distinguish.

What occurred. The brief distinguishes a Drury left-turn case without a complete reporter pin.

094. 2026-08-20 | TX none (Motion to Disregard filed 2026-08-20) | Milestone

Targets RB 8:8-16; 9:5-12; 10:15-21; 10:29-31; 11:6-11; 13:25-28; 14:16-20 under CRC 8.204(a)(1)(C).

1 **What occurred.** Targets RB 8:8-16; 9:5-12; 10:15-21; 10:29-31; 11:6-11; 13:25-28; 14:16-20
2 under CRC 8.204(a)(1)(C).

3 **095. 2026-09-01 | TX none (Opposition to Motion to Disregard filed 2026-09-01) | Morrissey**

4 Asked to withdraw speculation, respondent added more speculation and called the absence of a
5 reporter a waiver.

6 **What occurred.** Opposition: “If this conversation ever occurred, it is not part of the appellate
7 record and therefore constitutes waiver”; “There is no evidence in the appellate record that the
8 trial court ever refused to give CACI 705, 707, or 710”; plaintiff proposed 152 instructions and
9 the court gave 23, so “Obviously, there was some discussion . . . nothing indicating that the court
10 refused . . . rather than the parties simply agreeing.” As I identify the rule from the papers I have
11 read: record-unsupported appellate fact (CRC 8.204(a)(1)(C)).

12 **096. 2026-09-10 | TX none (A173827 unpublished opinion 2026-09-10) | Court of Appeal**
13 **(respondent’s frame adopted)**

14 The appellate court itself found respondent’s brief contained factual assertions without record sup-
15 port, and the forfeiture theme those assertions carried still shaped the result.

16 **What occurred.** Opinion affirms on forfeiture “with the agreement of the parties” framing; foot-
17 note 1 denies the motion to disregard “as unnecessary” and states that unsupported factual asser-
18 tions in respondent’s brief are disregarded (Tanguilig). The opinion does not cite CCP 647, Lund,
19 RT11 7:4-9, or the 9-3 poll. As I identify the rule from the papers I have read: record-unsupported
20 appellate fact (CRC 8.204(a)(1)(C)).

21 **097. 2026-08-03 to 2026-09 | TX none (RB 2026-08-03 compared with 801/802 papers) |**

22 **Morrissey / CSAA apparatus**

23 The insurer told the Court of Appeal the issues were never squarely decided and told two trial
24 courts they were conclusively decided.

25 **What occurred.** The RB admits liability was disputed, no turning instruction was given, the
26 verdict is “just as likely” a no-impact finding, and duty was never specifically instructed; in 801

1 and 802 the same insurer’s counsel says CGC-21-594102 “fully litigated” the investigation and
2 duty questions.

3 **PART VIII. THE 2025-2026 ACTIONS: CGC-25-631801 AND CGC-25-**
4 **631802 (PORTER SCOTT)**

5 **098. 2025-12-23 | TX none (CGC-25-631801 and CGC-25-631802 filed 2025-12-23) |**

6 **Milestone**

7 Fee waiver granted the same day.

8 **What occurred.** Fee waiver granted the same day.

9 **099. 2026-02-13 | TX none (O’Connell declaration 2026-02-13) | Tyler J. O’Connell, Porter**
10 **Scott**

11 Earliest Porter Scott paper on the ROA mirror.

12 **What occurred.** Earliest Porter Scott paper on the ROA mirror.

13 **100. 2026-03-04 / 03-05 | TX none (email 2026-03-04 / 03-05) | O’Connell**

14 The first communication from the new defense firm was a deadline backed by a threatened dispos-
15 itive motion.

16 **What occurred.** “I will be forced to move to quash the service of summons on the original, and
17 now stale Complaints in both cases” unless plaintiff filed consents to electronic service by March
18 6.

19 **101. 2026-03-06 | TX none (email 2026-03-06) | O’Connell**

20 Compliance produced a new deadline rather than a withdrawn threat.

21 **What occurred.** Demanded court filing by end of day or “I will have to file my Motions to Quash.”

22 **102. 2026-03-27 | TX none (email 2026-03-27; later sworn in April filings) | O’Connell**

23 A service objection became a repeated sworn narrative used to color the plaintiff as noncompliant.

24 **What occurred.** Asserted March 13 service of the FACs on CSAA’s agent was defective and

1 demanded re-service on Porter Scott; the same assertion appears under penalty of perjury in the
2 April 13 and April 22 declaration stacks.

3 **103. 2026-04-06 | TX none (certified meet-and-confer letters 2026-04-06) | Chad S. Tapp /**
4 **O’Connell**

5 The meet-and-confer was a fee threat, not a conference.

6 **What occurred.** Certified letters in both cases threatened anti-SLAPP motions with “mandatory”
7 fees unless the pleadings were withdrawn before the April 22 deadline; “my clients will vigorously
8 seek recovery of their attorneys’ fees and costs.” As I identify the rule from the papers I have read:
9 paper certified without the required factual or legal support (CCP 128.7(b)); anti-SLAPP used
10 without the required step-one / 425.17 gateway analysis.

11 **104. 2026-04-06 | TX none (email 2026-04-06) | O’Connell**

12 Counsel sought to keep the tribunal from seeing the correspondence while statutory meet-and-
13 confer obligations were live.

14 **What occurred.** “I again ask that you refrain” from copying the Court; hardened April 27 to
15 “cease copying the Court and various government agencies.”

16 **105. 2026-04-09 | TX 79007825 (801 anti-SLAPP packet) / TX 79007560 (802 anti-SLAPP**
17 **packet) | Tapp / O’Connell**

18 A special motion to strike that never identifies which pleaded facts supply which elements is a
19 motion built to skip the analysis the Supreme Court made mandatory.

20 **What occurred.** The MPAs recite the two-step test in name and jump to “Plaintiff cannot establish
21 a probability of prevailing” without performing the Park v. Board of Trustees (2017) 2 Cal.5th
22 1057 elements-supply analysis; they omit Baral v. Schnitt, Bonni v. St. Joseph Health, Wilson
23 v. CNN, Action Apartment Assn., and Flatley v. Mauro. As I identify the rule from the papers I
24 have read: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)); false
25 or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code
26 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b)); anti-SLAPP

used without the required step-one / 425.17 gateway analysis.

106. 2026-04-09 | TX 79007825 (801 anti-SLAPP MPA) | Tapp / O’Connell (801 MPA)

Confronted with the lie about receiving the police evidence, the new defense firm did not deny it; it claimed the lie was privileged.

What occurred. Responding to the FAC’s statement that PSA told the court the materials were “news to me” when the defense had possessed them, the 801 MPA says: “Again, this is protected conduct . . . the Anti-SLAPP statute bars this type of allegation, in kind,” and “even if those ‘misrepresentations’ were described, it would not matter, as the statements would clearly fall within the” litigation privilege. As I identify the rule from the papers I have read: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)); false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); anti-SLAPP used without the required step-one / 425.17 gateway analysis; extrinsic fraud / fraud on the court as pleaded (Kulchar; Modnick).

107. 2026-04-09 | TX 79007560 (802 anti-SLAPP MPA; DocID 10152120) | Tapp /

O’Connell (802 MPA, Tx 79007560 / DocID 10152120)

Confronted with the empty investigation file, the insurer admitted it never got the evidence and called the file complete anyway.

What occurred. The 802 anti-SLAPP MPA concedes non-obtainment before the February 25, 2021 letter while asserting the investigation reviewed available evidence. As I identify the rule from the papers I have read: investigation / settlement standard of Ins. Code 790.03(h) and 10 CCR 2695.7 (standard of care); anti-SLAPP used without the required step-one / 425.17 gateway analysis.

108. 2026-04-09 (sworn) | TX 79007560 / companion declarations 2026-04-09 | O’Connell declaration

The first sworn “harassment” label was applied to ordinary written discovery and later recycled as vexatious-litigant color.

1 **What occurred.** Under penalty of perjury: “duplicative, misnumbered, burdensome, and harass-
2 ing discovery requests.”

3 **109. 2026-04-10 | TX none (email 2026-04-10) | O’Connell**

4 Counsel threatened sanctions for seeking sanctions without naming a statute for either.

5 **What occurred.** “My office will seek attorneys’ fees”; if plaintiff files a motion to compel meet-
6 and-confer with a sanctions request, defense “will oppose it and request further sanctions against
7 you, for frivolously seeking to sanction my office”; “no such motion to compel exists.”

8 **110. 2026-04-13 | TX none (801 demurrer 2026-04-13) / TX 79038567 (802 demurrer MPA) |**
9 **Tapp / O’Connell**

10 A categorical “cannot” certification on extrinsic fraud omitted every controlling extrinsic-fraud
11 case.

12 **What occurred.** 801 demurrer MPA calls the December 23, 2025 lawsuit “frivolous” and time-
13 barred even if treated as a CCP 473(b) motion; asserts plaintiff “cannot demonstrate extrinsic
14 fraud” while omitting Westphal, Kulchar, Modnick, Sanders, Cansino, and Crowley. As I identify
15 the rule from the papers I have read: omission of controlling authority (CRPC 3.3(a)(2); Bus. &
16 Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b));
17 extrinsic fraud / fraud on the court as pleaded (Kulchar; Modnick).

18 **111. 2026-04-13 | TX 79038567 (802 demurrer MPA) | Tapp / O’Connell (802 demurrer)**

19 Counsel cited the case for the opposite of what it holds on the point that mattered.

20 **What occurred.** 802 papers treat Moradi-Shalal v. Fireman’s Fund (1988) 46 Cal.3d 287 as
21 barring all insurance-related claims, omitting the common-law carve-out preserved in Moradi-
22 Shalal itself and confirmed in Manufacturers Life (1995) 10 Cal.4th 257 and Zhang v. Superior
23 Court (2013) 57 Cal.4th 364. As I identify the rule from the papers I have read: false or misleading
24 statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)).

1 **112. 2026-04-16, 04-22, 04-25 | TX none (plaintiff letters 2026-04-16 / 04-22 / 04-25) |**

2 **Milestones**

3 April 16 meet-and-confer; April 22 CCP 128.7(c)(1) safe-harbor letter (21-day clock to May 14);
4 April 25 merits letter.

5 **What occurred.** April 16 meet-and-confer; April 22 CCP 128.7(c)(1) safe-harbor letter (21-day
6 clock to May 14); April 25 merits letter.

7 **113. 2026-04-22 | TX 79127897 (802 CCP 436 MPA) | Tapp / O’Connell**

8 An unsourced dollar figure from the tainted judgment was dropped into a footnote to prejudice the
9 court.

10 **What occurred.** Motions to strike assert plaintiff “cannot establish the requisite ‘extrinsic’ ” fraud
11 and, in footnotes, that plaintiff “currently owe’s \$75,000 in attorney’s fees” (801) / “owes approx-
12 imately \$75,000.00 in costs” (802), with no cost order cited. Fourth sworn CCP 1015 defective-
13 service declaration. As I identify the rule from the papers I have read: paper certified without the
14 required factual or legal support (CCP 128.7(b)).

15 **114. 2026-04-22 (billing entry disclosed Aug 19) | TX none (invoice entry 2026-04-22;
16 disclosed Aug 19) | Porter Scott**

17 The vexatious strategy was under way the same day plaintiff’s safe-harbor letter arrived, three
18 months before any court had ruled.

19 **What occurred.** Unredacted invoice later served shows April 22 research on “VEXATIOUS LIT-
20 IGANT AND REQUIREMENT TO POST SECURITY” and review of a sample motion “GIVEN
21 CLEAR APPLICABILITY.”

22 **115. 2026-04-23 | TX none (opposition to leave 2026-04-23) | Tapp / O’Connell**

23 Counsel told the court no authority existed on a point governed by two published Court of Appeal
24 decisions and a subdivision of the statute counsel was invoking.

25 **What occurred.** “Plaintiff cites no authority to support the proposition that he can file his Motion

1 for Leave to Amend, as no such authority exists to support his motion.” JKC3H8 v. Colton
2 (2013) 221 Cal.App.4th 468, Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871-873, and CCP
3 425.16(f) are unmentioned. The brief also accuses plaintiff of “gameessmanship and complete lack
4 of respect for this Court.” As I identify the rule from the papers I have read: false or misleading
5 statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); paper
6 certified without the required factual or legal support (CCP 128.7(b)); anti-SLAPP used without
7 the required step-one / 425.17 gateway analysis.

8 **116. 2026-04-24 | TX none (email 2026-04-24) | O’Connell**

9 Counsel answered a citation to controlling authority with ridicule and a sanctions threat.

10 **What occurred.** “Uploading it to ChatGPT, and receiving spoon-fed AI hallucinations, is not
11 a proper stand-in for legal analysis.” Threatened sanctions for “uncivil conduct” in naming
12 Navaratnasingham and Reyna; called plaintiff’s manner “clearly harassing”; billed the same day
13 as “SANCTIONABLE CONDUCT.”

14 **117. 2026-04-27 | TX none (email 2026-04-27) | O’Connell**

15 Inside the safe-harbor window, counsel refused to read the authorities, refused to withdraw, and
16 demanded the plaintiff stop writing.

17 **What occurred.** Reply to plaintiff’s Moradi-Shalal / common-law preservation letter: the content
18 is “entirely nonsensical and does not warrant a response”; “my clients’ motions will not be va-
19 cated or withdrawn”; demanded plaintiff cease meet-and-confer letters as “burdensome, harassing,
20 repetitive.” As I identify the rule from the papers I have read: omission of controlling authority
21 (CRPC 3.3(a)(2); Bus. & Prof. Code 6068(d)); paper certified without the required factual or legal
22 support (CCP 128.7(b)).

23 **118. 2026-04-29 / 04-30 | TX none (email 2026-04-29 / 04-30) | O’Connell**

24 A statutory designation with lifelong consequences was brandished by email as a threat to make a
25 pro per stop appearing.

26 **What occurred.** Asserted plaintiff “cannot appear” after the 4:00 p.m. tentative-contest deadline;

1 attacked his appearance as a Rules of Court violation; “if you continue to file this nonsense, I will
2 move the Court to have you deemed a vexatious litigant.” As I identify the rule from the papers I
3 have read: vexatious-litigant elements missing (CCP 391(b)).

4 **119. 2026-05-01 | TX none (CM-110 2026-05-01) | Porter Scott**

5 “Defendants’ may file a motion to have plaintiff deemed a vexatious litigant”; lists “burdensome
6 and harassing discovery.”

7 **What occurred.** “Defendants’ may file a motion to have plaintiff deemed a vexatious litigant”;
8 lists “burdensome and harassing discovery.”

9 **120. 2026-05-04 / 05-05 | TX none (email 2026-05-04 / 05-05) | O’Connell**

10 Counsel threatened contempt for a litigant appearing at his own hearing.

11 **What occurred.** “I will address your harassing manner of litigating this case, with the Court.”
12 “If you attempt the same inappropriate appearance at this hearing in Dept 301, I will request ...
13 potentially contempt sanctions for violating the Rules of Court.”

14 **121. 2026-05-05 / 05-06 | TX none (anti-SLAPP replies 2026-05-05 / 05-06) | Porter Scott**

15 Every plaintiff filing was met with a request that he pay for having filed it.

16 **What occurred.** Anti-SLAPP replies ask the court to “consider issuing sanctions” for multiple
17 oppositions; discovery oppositions seek fees.

18 **122. 2026-05-12 | TX none (hearing 2026-05-12; formal order DocID 10361462 2026-08-06) |**
19 **Porter Scott (801 hearing, Dept. 301)**

20 The defense won by telling one court that the 2025 misrepresentations were litigation conduct
21 already adjudicated, a position it would contradict in the next courtroom.

22 **What occurred.** The court accepted defense positions that the FAC targets litigation conduct,
23 that MIL 6/8/17 issues were “fully litigated,” and that CCP 425.17(c) is inapposite. Formal order
24 entered August 6, 2026 (DocID 10361462). As I identify the rule from the papers I have read:
25 anti-SLAPP used without the required step-one / 425.17 gateway analysis.

1 **123. 2026-05-15 | TX none (email 2026-05-15) | O’Connell**

2 Fees were framed as a meter running against the plaintiff for continuing to litigate.

3 **What occurred.** Email after the anti-SLAPP ruling.

4 **124. 2026-05-27 | TX none (email 2026-05-27) | Tapp**

5 A partner’s response to a bar report was an insult and a billing entry for a sanctions motion.

6 **What occurred.** Same-day invoice shows billing to commence CCP 128.7 and CCP 391 motion
7 preparation and “ISSUING CEASE AND DESIST TO PLAINTIFF.”

8 **125. 2026-06-16 / 06-17 | TX none (email 2026-06-16 / 06-17) | O’Connell**

9 Filings “nonsensical, meritless”; “I will be completely justified in moving to have you deemed a
10 vexatious litigant.”

11 **What occurred.** Filings “nonsensical, meritless”; “I will be completely justified in moving to have
12 you deemed a vexatious litigant.”

13 **126. 2026-06-23 / 06-24 | TX none (802 hearing 2026-06-23 / 06-24) | Porter Scott (802)**

14 The defense obtained the anti-SLAPP remedy while skipping the statutory threshold that decides
15 whether the remedy is available at all.

16 **What occurred.** Defense position adopted in the June 23 tentative: 425.17(b)/(c) inapplicable,
17 proceed to 425.16, without the Simpson Strong-Tie / JKC3H8 gateway analysis. As I identify the
18 rule from the papers I have read: anti-SLAPP used without the required step-one / 425.17 gateway
19 analysis.

20 **127. 2026-06-30 / 07-01 | TX none (802 anti-SLAPP order DocID 10297081) | Porter Scott**

21 Defense then treats the order as “case over” and as the CCP 391.3 no-probability premise.

22 **What occurred.** Defense then treats the order as “case over” and as the CCP 391.3 no-probability
23 premise.

1 **128. 2026-07-07 | TX none (email 2026-07-07) | Tapp**

2 Counsel threatened to bar the courthouse door before any court had found a single filing frivolous.

3 **What occurred.** “CCP 128.5 motion for frivolous pleadings and moving to have you declared
4 a vexatious litigant” if plaintiff files another related complaint; describes the bond and pre-filing
5 order; “final plea to stop the incessant, AI generated frivolous filings.” As I identify the rule from
6 the papers I have read: vexatious-litigant elements missing (CCP 391(b)).

7 **129. 2026-07-17 / 07-18 | TX none (proposed order / 802 fee motion 2026-07-17 / 07-18) |**

8 **Porter Scott**

9 Declaration: plaintiff “continued to bombard” with “harassing email.”

10 **What occurred.** Declaration: plaintiff “continued to bombard” with “harassing email.”

11 **130. 2026-07-21 / 07-22 | TX none (CCP 391 motion filed 2026-07-21 / 07-22) | Tapp /**

12 **O’Connell**

13 The motion asked a trial court to gate every filing in California by a party whose only “losses”
14 were the judgment under appeal and two anti-SLAPP orders the movant had itself just obtained.

15 **What occurred.** Motion to declare plaintiff vexatious under 391(b) and require security under
16 391.3; hearing Aug 26, Dept. 302. Declaration counts “no fewer than one-hundred and twenty-one
17 (121) email correspondences” since February 2026. MPA seeks “judicial approval for any further
18 filings ... in the State of California”; proposed order leaves security blank and subjects “any
19 filings Plaintiff submits ... [to] Court screening and approval.” Plaintiff’s opposition catalogs:
20 wrong primary right and wrong defendant for 391(b)(2); the PI judgment not “finally determined”
21 while A173827 was pending; volume adjectives substituted for Morton’s flagrant-abuse standard;
22 RFJN Ex. F mis-cited as the July 1 order; “391(d)” cited for a definition found in 391(b); the FAC
23 mislabeled “Defendant’s”; asks the court to “impose sanity”; labels the Contra Costa action forum
24 shopping. As I identify the rule from the papers I have read: CCP 391(b)(2) requires repeated
25 relitigation, after final determination, against the same defendant of the same cause or issues. That
26 element is missing (item 130A). A motion that seeks a statewide prefiling order on a missing

1 element is a CCP 128.7(b)(2) legal contention without support, and a 391.7 request that only a
2 court, not counsel, may impose.

3 **130A. 2026-07-21 | TX none (same 391 motion 2026-07-21 / 07-22) | Tapp / O'Connell**

4 Counsel branded the injured party vexatious for suing the insurer over an empty investigation file,
5 which is not a second suit against the driver on the collision.

6 **What occurred.** There has never been a lawsuit by this plaintiff against CSAA Insurance Ex-
7 change (or against Porter Scott's 801/802 clients) on the same primary right that was finally deter-
8 mined against him. CGC-21-594102 was a vehicle-negligence action against Subhi Abdelhalim.
9 The judgment, if any, ran against that driver, not against CSAA, and was on appeal in A173827
10 when the 391 motion was filed. CGC-25-631802 is a claims-handling / empty-file action against
11 the insurer. CGC-25-631801 is an equity / fraud-on-the-court action. Shared facts (the 911 call, the
12 BWC, the denial letter) do not merge those primary rights. (Crowley v. Katleman (1994) 8 Cal.4th
13 666, 681-682; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904.) CCP 391(b)(2) there-
14 fore had no merits: wrong defendant, wrong primary right, no final determination of the insurer
15 claims. As I identify the rule from the papers I have read: A 391(b)(2) filing that cannot identify
16 a prior finally determined action against the same defendant on the same matter is an unsupported
17 legal contention (CCP 128.7(b)(2); CRPC 3.1, 3.3(a)(1)).

18 **131. 2026-07-23 | TX none (801 reconsideration opposition 2026-07-23) | Porter Scott**

19 Footnote points to the pending 802 vexatious hearing.

20 **What occurred.** Footnote points to the pending 802 vexatious hearing.

21 **132. 2026-07-28 | TX none (email 2026-07-28) | O'Connell**

22 The safe-harbor letter received a one-line refusal.

23 **What occurred.** Response to plaintiff's July 27 CCP 128.7 safe-harbor notice on the 391 motion.
24 As I identify the rule from the papers I have read: paper certified without the required factual or
25 legal support (CCP 128.7(b)); vexatious-litigant elements missing (CCP 391(b)).

1 **133. 2026-08-10 | TX none (email 2026-08-10) | O’Connell**

2 Counsel inflated an unentered fee figure past six figures by email to induce a walk-away.

3 **What occurred.** “CCP 391(b)(3) squarely applies”; plaintiff’s 128.7 notice is “defective, as it is
4 not a proper motion. Hence the 21-day safe harbor period has not commenced”; the judgment
5 debt is “very likely well over \$100,000.00”; a walk-away settlement channel is offered; “if you
6 attempt to serve ‘exhaustive discovery’ ... it will not go your way.” As I identify the rule from the
7 papers I have read: paper certified without the required factual or legal support (CCP 128.7(b));
8 vexatious-litigant elements missing (CCP 391(b)).

9 **134. 2026-08-11 | TX 80309587 (801 fee motion; DocIDs 10369670 / 10369671 / 10369673) |**
10 **Porter Scott**

11 Regulatory complaints to the agencies charged with oversight were listed as harassment to be billed
12 against the complainant.

13 **What occurred.** Tx 80309587; DocIDs 10369670 / 10369671 / 10369673. As I identify the rule
14 from the papers I have read: anti-SLAPP used without the required step-one / 425.17 gateway
15 analysis.

16 **135. 2026-08-11 | TX none (email 2026-08-11; minutes seq 199-200) | O’Connell**

17 Told plaintiff he had not timely contested the tentative and could not appear; reconsideration denied
18 (minutes seq 199-200).

19 **What occurred.** Told plaintiff he had not timely contested the tentative and could not appear;
20 reconsideration denied (minutes seq 199-200).

21 **136. 2026-08-19 | TX 80396124 (withdrawal) / TX 80398280 (refiled fees) | Porter Scott**

22 After plaintiff opposed, the defense withdrew, added about \$11,000, and refiled so the opposition
23 could be called a “non-opposition.”

24 **What occurred.** Withdrawal notices (801 Tx 80396124 / DocID 10384301; 802 twin) and re-
25 placement papers (Tx 80398280).

1 **137. 2026-08-19 | TX none (391 reply 2026-08-19) | Porter Scott**

2 The plaintiff's opposition to being declared vexatious was itself counted as evidence of vexatious-
3 ness.

4 **What occurred.** Also accuses plaintiff of false public statements about Abdelhalim via a Spot
5 Fund exhibit. As I identify the rule from the papers I have read: false or misleading statement to
6 a tribunal, or failure to correct one (CRPC 3.3; Bus. & Prof. Code 6068(d)); vexatious-litigant
7 elements missing (CCP 391(b)).

8 **138. 2026-08-21 | TX none (802 fee off calendar 2026-08-21; ROA seq 349) | Porter Scott**

9 A fee motion filed as leverage was pulled once it had to be argued.

10 **What occurred.** ROA seq 349.

11 **139. 2026-08-26 | TX none (hearing 2026-08-26; order DocID 10397483) | O'Connell (Dept.**
12 **302, Judge Quinn)**

13 The motion was brought without addressing whether the court had jurisdiction to hear it during a
14 stay, and counsel vowed to press it anyway.

15 **What occurred.** Court vacated submission and ordered six-page supplemental briefs on whether
16 it has jurisdiction while the appeals are pending (Pittman v. Beck Park Apartments (2018) 20
17 Cal.App.5th 1009). Order DocID 10397483. Post-hearing email: "I will not withdraw the motion
18 to deem you what you are: vexatious." As I identify the rule from the papers I have read: vexatious-
19 litigant elements missing (CCP 391(b)).

20 **140. 2026-08-27 to 08-31 | TX none (emails 2026-08-27 to 08-31) | O'Connell**

21 Counsel promised escalating financial punishment as a substitute for argument.

22 **What occurred.** Will renew 391 "after you lose your appeals"; fees "shall" be awarded; "It's only
23 going to get worse"; "recover every single dollar"; "AI hallucinations."

24 **141. 2026-09-08 | TX none (801 fee reply 2026-09-08) | Porter Scott**

25 Having engineered the "non-opposition," counsel then argued from it.

1 **What occurred.** Treats plaintiff's opposition as moot because the motion was withdrawn and
2 refiled; threatens appellate fee exposure; hearing off calendar per the Aug 19 notice.

3 **142. 2026-09-09 | TX none (802 fee reply 2026-09-09) | Porter Scott**

4 Parallel reply asserts plaintiff misattributed a quotation to Varian; frames filings as AI and burying
5 counsel; concedes 391 still pending while offering a fee reduction.

6 **What occurred.** Parallel reply asserts plaintiff misattributed a quotation to Varian; frames filings
7 as AI and burying counsel; concedes 391 still pending while offering a fee reduction.

8 **143. 2026-09-10 onward | TX none (A173827 used for 391(b)(2) finality from 2026-09-10) |**
9 **Porter Scott / CSAA**

10 A judgment not yet final was offered as final in the one motion where finality is an element.

11 **What occurred.** Defense architecture treats the unpublished forfeiture affirmance as the “finally
12 determined” adverse judgment for the vexatious motion and as preclusion in 801/802 while the
13 rehearing and review windows (CRC 8.264, 8.500) remain open. As I identify the rule from
14 the papers I have read: omission of controlling authority (CRPC 3.3(a)(2); Bus. & Prof. Code
15 6068(d)); false or misleading statement to a tribunal, or failure to correct one (CRPC 3.3; Bus. &
16 Prof. Code 6068(d)); paper certified without the required factual or legal support (CCP 128.7(b));
17 deceit toward the court (Bus. & Prof. Code 6128(a) as pleaded).

18 **PART IX. CROSS-CUTTING CONTRADICTIONS**

19 The same defense apparatus told one tribunal one thing and another tribunal the opposite, as shown
20 in the paired positions below.

21 **C-1. TX none (paired filings)**

22 Position A and Position B were both offered to courts.

23 **What occurred.** Position A: “News to me”; not produced; unknown origin (594102, MILs 6/17;
24 Feb 18, 2025). Position B: “Sure. They were provided by Dolan. He has had them for whatever,
25 sure.” (594102, RT7, Apr 16, 2025).

1 **C-2. TX none (paired filings)**

2 Position A and Position B were both offered to courts.

3 **What occurred.** Position A: “It does not appear that ... the recording were obtained via proper
4 subpoena process” (MIL 17). Position B: “We did subpoena” police records (RT7 157:7-16);
5 Compex CA1147102-021 signed by Reyna.

6 **C-3. TX none (paired filings)**

7 Position A and Position B were both offered to courts.

8 **What occurred.** Position A: CSAA “reviewed the available evidence, including the statements of
9 its Insured” (802 MPA). Position B: CSAA “had failed to obtain” the 911, BWC, and CAD before
10 the denial (same 802 MPA).

11 **C-4. TX none (paired filings)**

12 Position A and Position B were both offered to courts.

13 **What occurred.** Position A: Vehicle Code 22107 / 21804(a) “not part of the evidence ... period”
14 (594102, RT11 7:4-9, defense as beneficiary). Position B: Defense counsel “requested that the
15 definition for ‘highway’ also be included” and Veh. Code 670 and 360 were “submitted to the
16 jury” (PSA opposition, May 12, 2025).

17 **C-5. TX none (paired filings)**

18 Position A and Position B were both offered to courts.

19 **What occurred.** Position A: Plaintiff’s pleaded statutes admissible as Exhibit 500 and argued in
20 closing (594102). Position B: Same statutes may not be stated to the jury as law (594102, RT11).

21 **C-6. TX none (paired filings)**

22 Position A and Position B were both offered to courts.

23 **What occurred.** Position A: “Plaintiff raised no objection to the jury instructions” (PSA, May 12,
24 2025); “invited error” (RB Aug 3, 2026). Position B: Plaintiff moved for mistrial and objected on
25 the record (RT11 pp. 3-4, 10-12); CCP 647 deems refusal excepted to.

1 **C-7. TX none (paired filings)**

2 Position A and Position B were both offered to courts.

3 **What occurred.** Position A: Investigation and duty issues were “fully litigated” and are preclusive
4 (801/802, Porter Scott). Position B: Liability disputed, no turning instruction given, verdict “just
5 as likely” a no-impact finding, duty never specifically instructed (A173827 RB, Morrissey).

6 **C-8. TX none (paired filings)**

7 Position A and Position B were both offered to courts.

8 **What occurred.** Position A: The 2025 misrepresentations were litigation conduct of PSA “not
9 even the conduct of these moving Defendants” CSAA/Carbone/Chambers (801 MPA). Position B:
10 CSAA’s staff counsel (csaa.com) files the respondent’s brief defending the same judgment; CSAA
11 “had no litigation role” (802).

12 **C-9. TX none (paired filings)**

13 Position A and Position B were both offered to courts.

14 **What occurred.** Position A: Unrecorded sidebar silence proves plaintiff waived (A173827). Posi-
15 tion B: Unrecorded sidebar cannot be reconstructed, so plaintiff’s account is an “outright misstate-
16 ment” (PSA, May 12, 2025) and rule 8.137 relief denied.

17 **C-10. TX none (paired filings)**

18 Position A and Position B were both offered to courts.

19 **What occurred.** Position A: The PI judgment is “finally determined” against plaintiff for CCP
20 391(b) (802 motion, July 21, 2026). Position B: The same judgment was on appeal with the RB
21 not yet filed when the motion was drafted; CRC 8.500 review window still open today.

22 **C-11. TX none (paired filings)**

23 Position A and Position B were both offered to courts.

24 **What occurred.** Position A: Plaintiff’s 128.7 safe-harbor notice is “defective ... not a proper
25 motion” so no clock runs (Aug 10, 2026). Position B: Porter Scott’s own threatened 128.7 and

128.5 motions were never served or filed.

C-12. TX none (paired filings)

Position A and Position B were both offered to courts.

What occurred. Position A: Plaintiff's oppositions are "twenty-two (22) opposition papers" proving vexatiousness (391 reply). Position B: Plaintiff's opposition to the refiled fee motions is a "non-opposition" (Sept 8-9 replies).

C-13. TX none (paired filings)

Position A and Position B were both offered to courts.

What occurred. Position A: Plaintiff "was driving in violation of Vehicle Code section 23152 and/or 23153 for which violation(s) plaintiff was convicted" (Chambers Answer, Fifth Affirmative Defense, CT 1:46). Position B: No such arrest, charge, or conviction exists; Civ. Code 3333.4 does not apply to a person who was not driving.

C-14. TX none (paired filings)

Position A and Position B were both offered to courts.

What occurred. Position A: Continuance papers reciting treaters, billing records, and "medical evaluations of Plaintiff" (2023-2024). Position B: MILs 2, 3, 13, 14, 18, 20: plaintiff "failed to provide any" / "failed to produce" medical evidence (Jan-Mar 2025).

C-15. TX none (paired filings)

Position A and Position B were both offered to courts.

What occurred. Position A: Plaintiff is a vexatious litigant under 391(b)(2) for relitigating a finally determined action (802 motion). Position B: No prior finally determined action against CSAA on the claims-handling primary right; the PI judgment ran against Abdelhalim and was on appeal.

C-16. TX none (paired filings)

Position A and Position B were both offered to courts.

1 **What occurred.** Position A: Instructional error is reviewed de novo (RB 6:8-10). Position B: The
2 same brief treats RT11 as a waiver / invited-error record, which a de novo reading of RT11 does
3 not contain.

4 **CLOSING DECLARATION**

5 I, Franciscus Dylan Rosario, declare under penalty of perjury under the laws of the State of Cal-
6 ifornia that the facts in this declaration are true of my own knowledge, except where I have said
7 they are on information and belief or are the contents of a paper or transcript I have read; that those
8 facts are true to the best of my ability; and that they represent the actual state of this case as I know
9 it.

10 Executed at Rohnert Park, California.

11 Dated: September 22, 2026

12 

13 Franciscus Dylan Rosario
14 Plaintiff, In Pro Per

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